

**Court No. - 39**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Krishna Murari, J.**

**Hon'ble Ashwani Kumar Mishra, J.**

Sri Baleshwar Chaturvedi, learned counsel for respondents no. 1, 2 & 3 prays for and is allowed ten days time to seek instruction in the matter.

Put up as fresh on 22nd September, 2014.

**Order Date :-** 4.9.2014

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**Court No. - 39**

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**Respondent :-** U.P. Power Corporation Ltd. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Krishna Murari, J.**

**Hon'ble Ashwani Kumar Mishra, J.**

Sri Kamal Kesarwani, holding brief of Sri Baleshwar Chaturvedi, appearing for the respondent corporation prays for and is granted one week's further time to seek instructions in the matter.

Put up as fresh on 8th October, 2014.

Till then, no coercive steps shall be taken against the petitioner.

**Order Date :-** 22.9.2014

Anil

**Court No. - 39**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Shri Narayan Shukla, J.**

Learned counsel for the petitioner contends that the respondents had permanently disconnected his electric connection.

Sri Baleshwar Chaturvedi, learned counsel for the respondent was directed to seek instruction who submits that only a temporary disconnection was made.

Let a counter affidavit be filed within two weeks.

List on 28.10.2014.

Interim order, granted earlier, shall continue till the next date of listing.

**Order Date :-** 8.10.2014

A. K. Singh

(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

**Court No. - 39**

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**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Shri Narayan Shukla, J.**

List has been revised. The learned counsel for the Electricity Department is not present.

List after two weeks. Counter affidavit may be filed by then.

Interim order, if any, is extended till further orders of the Court.

**Order Date :-** 28.10.2014

AKJ

(Shri Narayan Shukla, J.)

(Tarun Agarwala, J.)

**Court No. - 39**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Shri Narayan Shukla, J.**

Three weeks further time is allowed to the respondent to file counter affidavit. List thereafter.

**Order Date :-** 12.11.2014

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(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

**Court No. - 39**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Dr. Satish Chandra, J.**

Three weeks further time is allowed to the respondents to file a counter affidavit.

List thereafter.

**Order Date :-** 4.12.2014

Bhaskar

**(Dr. Satish Chandra, J.)**

**(Tarun Agarwala, J.)**

**Court No. - 21**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru Chairman  
And 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar  
Shukla, Ashwani Kumar Mishra, Sant Kumar Mishra

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Vikram D. Chauhan, J.**

As prayed by learned counsel for respondent nos.2 and 3, two weeks and no more further time is allowed for filing counter affidavit, failing which respondent no.3 shall remain present in Court along with all relevant records to enable the Court to decide the matter.

List on 22.2.2023.

Sri Virendra Kumar Gautam, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent nos.2 and 3 shall communicate the instant order to respondent no.3 for compliance.

Interim order is extended till the next date of listing.

**Order Date :-** 1.2.2023

Bhaskar

(Vikram D. Chauhan, J.)      (Manoj Kumar Gupta, J.)

**Court No. - 21**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru Chairman  
And 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar  
Shukla, Ashwani Kumar Mishra, Sant Kumar Mishra

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Syed Qamar Hasan Rizvi, J.**

Counter affidavit has been filed on behalf of respondent nos.2  
& 3. The same is taken on record.

As prayed, ten days time is granted to counsel for the petitioner  
to file rejoinder affidavit.

List on 16.03.2023.

Interim order is extended till the next date of listing.

**Order Date :-** 22.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)



**Court No. - 21**

**Case :-** WRIT - C No. - 47315 of 2014

**Petitioner :-** Ramesh Chandra

**Respondent :-** U.P. Power Corporation Ltd. Thru Chairman And 2 Others

**Counsel for Petitioner :-** Pravesh Kumar, Anil Kumar Shukla, Ashwani Kumar Mishra, Sant Kumar Mishra

**Counsel for Respondent :-** Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Prashant Kumar, J.**

Rejoinder affidavit filed today is taken on record.

The instant petition has been filed praying for quashing of the demand notice dated 27.02.2013 in respect of Connection No.1301/034717, Book No.1301.

The case of the petitioner is that the aforesaid electricity connection was recommended for permanent disconnection since 12.04.2006 as per Form-9 (Annexure no.2). The said form clearly discloses that the electric cable was removed on the same date.

The respondents, however, did not issue the order in Form 4.8 as was required under the provisions of the U.P. Electricity Supply Code, 2005. As the electric wires were removed and therefore, no electricity was supplied to the petitioner since after 12.04.2006. After expiry of seven years, the respondent issued the impugned demand notice for a fanciful amount, without any basis.

At the time the writ petition was filed, an interim order was passed in favour of the petitioner staying the recovery in pursuance of the impugned demand notice.

The respondent-Electricity Department has filed a counter affidavit and wherein the stand taken is that as per its ledger account, a sum of Rs.52,504/- was outstanding against the petitioner on the date of the disconnection i.e., 12.04.2006. By inadvertence and sheer mistake, the impugned demand notice was issued.

Clause 4.14 of the U.P. Electricity Supply Code enjoins upon the respondents to deliver final bill including therein all arrears upto the date of disconnection within 30 days from the date of the application filed by the consumer terminating the agreement.

Upon payment, the licensee shall issue receipt with final bill stamped on it, which would be treated as no dues certificate.

Apparently, the respondent had not carried out their obligation in issuing any bill of arrears, despite the fact that the electricity supply was disconnected on 12.04.2006. They had also issued the impugned demand notice which is admittedly not a correct one, but is said to have been issued by inadvertence.

Section 56 (2) of the Electricity Act provides that no sum due from any consumer shall be recoverable after a period of two years from the date when such a sum became first due unless such sum has been shown continuously as recoverable as arrears of charges for electricity supply.

Learned counsel for the respondent-Electricity Department fairly concedes that no bill was ever issued to the petitioner demanding the arrears of Rs.52,504/- and the stand in this behalf has been taken in the counter affidavit on basis of a ledger entry. He states that the respondents will issue permanent disconnection order and will not insist for payment of any further amount.

Having regard to the above statement, we quash the impugned demand and direct the respondents to issue permanent disconnection order in Annexure 4.8 as provided under the U.P. Electricity Supply Code, 2005 within two weeks of communication of the instant order.

The writ petition stands **allowed**.

**(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)**

**Order Date :- 16.3.2023**

Shivangi